

**IN THE SUPREME COURT OF
BANGLADESH**

HIGH COURT DIVISION

(CRIMINAL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Shohrwardi

Criminal Revision No. 948 of 2009

Khalilur Rahman and others

.....Convict Petitioner

-versus-

The State

.....Opposite Party

None appears

.... For the convict petitioner

Mr. S.M. Golam Mostofa, DAG with

Mr. Md. A. Mannan, AAG

....For the State

Heard on 04.07.2024, 10.07.2024, 11.07.2024

Judgment delivered on 16.07.2024

On an application under sections 439 and 435 of the Code of Criminal Procedure, 1898 Rule was issued calling upon the opposite party to show cause as to why the judgment and order of conviction and sentence dated 27.5.2009 passed by Additional Sessions Judge, Borguna in Criminal Appeal No. 36 of 2003 affirming the judgment and order dated 30.4.2003 passed by the Additional District Magistrate, Borguna in Betagi P.S. Case No. 1 dated 05.01.2001, G.R. No.1 of 2001 (Betagi) convicting the petitioners under section 323 the Penal Code, 1860 and sentencing them thereunder to suffer rigorous imprisonment for 3(three) months and convicting the accused Jashim and Abdul Jalil under section 324 of the Penal Code, 1860 and sentencing them thereunder to suffer

rigorous imprisonment for 1(one) year should not be set aside and/or pass such other or further order or orders as to this court may seem fit and proper.

The prosecution case, in short, is that on 19.12.2000 at 2.00 pm the accused persons armed with dangerous weapons like ramda, cheni, shable, kachi etc entered into Khatian No. 477, Dag No. 4199, Mouza-Kawnia belonging to the father of the informant P.W. 1 Enamul Haque Meraj and forcibly started cutting the paddy of the said land. After receipt of the said information, the informant along with the wife of his elder brother and the niece came to the said land and restrained the accused persons from cutting the paddy from their land. At that time, accused Khalilur Rahmna dealt a ramda blow on the head of the informant which caused grievous bleeding injury. He raised hue and cry and instantaneously the accused Abdul Jalil and Jashim dealt another blow on his head which caused bleeding injuries on his head. The wife of his elder brother, Most. Nilufa Begum, who was standing behind him and the niece Poly Akter caught him to save. At that time, the accused persons caused injuries by ramda and cheni. Consequently, they were also grievously injured. The informant fell on the ground and the accused persons beat the informant which caused grievous injuries on his body. Hearing the hue and cry of the victims, the locals assembled at the place of occurrence and the accused persons fled away. The victims were taken to the doctor for treatment and after taking treatment, the informant lodged the FIR on 05.01.2001 after about 17 days. The informant claimed that at the time of occurrence, the accused Idrish Ali snatched away her watch valued at Tk. 2100. The informant claimed that there was a previous enmity between the accused persons and the informant parties. Earlier the informant party filed criminal cases against the accused persons.

P.W. 14 Rustom Ali, Officer-in-Charge, Betagi Thana took up the investigation of the case. During the investigation, he visited the place of occurrence, seized the alamats, and recorded the statements of the

witnesses under section 161 of the Code of Criminal Procedure, 1898. After completing the investigation he submitted charge sheet against the accused persons under sections 143/447/423/424/307/326/379 of the Penal Code, 1860.

The case was sent to the District Magistrate, Borguna. After that, the case was transferred to the Additional District Magistrate, Borguna for trial. During trial, charge was framed against the accused Khalilur Rahman under sections 323/326/307 of the Penal Code, 1860, against the accused Idrish Ali under section 323 of the Penal Code, 1860, and against accused Jashim and Jalil under sections 323/324 of the Penal Code, 1860 which was read over and explain to them and they pleaded not guilty to the charge and claimed to be tried following law. The prosecution examined 14 witnesses to prove the charge against the accused persons. After examination of the prosecution witnesses, the accused persons were examined under section 342 of the Code of Criminal Procedure, 1898 and again they pleaded not guilty to the charge and declined to adduce any D.W.

After concluding the trial, the trial court by judgment and order dated 30.04.2003 convicted the accused Jashim, Abdul Jalil, Khalilur Rahman and Idrish Ali under section 323 of the Penal Code, 1860 and sentenced them to suffer rigorous imprisonment for 03 (three) months and convicted the accused Jashim and Jalil under section 324 of the Penal Code, 1860 and sentenced them to suffer rigorous imprisonment for 1(one) year. Against the said judgment and order of conviction and sentence passed by the trial court, the accused persons filed Criminal Appeal No. 36 of 2003 before the Sessions Judge, Borguna which was heard by the Additional Sessions Judge, Borguna. The appellate Court after hearing the appeal by impugned judgment and order dated 27.05.2009 affirmed the judgment and order of conviction and sentence passed by the trial court against which the convict petitioners obtained the Rule.

None appears on behalf of the convict petitioners.

The learned Assistant Attorney General Mr. A. Monna appearing on behalf of the state submits that P.W. 1 informant Enamul Haque Meraj stated that accused Kalilulur Rahman dealt a ramda blow on his head and accused Abdul Jalil and Jashim also dealt a separate ramda blows on the head of the victim P.W.1. The evidence of P.W.1 as regards the injury caused by accused Khalilur Rahman, Abdul Jalil and Jashim is corroborated by P.Ws. 1, 2, 3,4, 6, 7 and 9 who are the direct witnesses of the occurrence and the medical certificate (exhibit-) issued by P.W. 13 Doctor Jafor Ali Khan. He further submits that the accused Idrish dealt injury to P.W. 1 and snatched away his watch. The prosecution proved the charge against the accused persons beyond all reasonable doubt. Therefore, he prayed for discharging the Rule.

I have considered the submission of the learned Assistant Attorney General who appeared on behalf of the state, perused the evidence, impugned judgments and orders passed by the courts below and the records.

On perusal of the records, it appears that P.W.1 Enamul Haque Meraj is the victim and at the time of causing injuries to P.W. 1, P.W. 6 Nilufar Begum and P.W. 7 Poly Akter accompanied the victim. P.Ws. 2, 3, 4 and 9 are also the direct witnesses of the occurrence. P.W. 13 issued the medical certificate after examination of P.Ws. 1. P.W. 14 is the investigating officer, and P.W. 5, 8, 10, 11 and 12 are the hearsay witnesses.

P.W. 1 Enamul Haque Meraj stated that when he tried to restrain the accused persons from cutting the paddy from the land of his father, accused Khalilur Rahman dealt ramda blow on his head which caused injuries on his head and after the occurrence, the victim was taken to Hospital. He further stated that accused Jashim and Abdul Jalil dealt ramda blows on the back of his head which caused a bone cut injury and at

that time he fell on the ground. The evidence of P.W. 1 as regards injury caused by Khalilur Rahman is corroborated by P.Ws. 2, 3, 4, 6, 7 and 9 and the medical certificate (exhibit-2) dated 19.12.2000 issued by P.W. 13 Doctor Md. Jafor Ali Khan, Medical Officer, Betagi Hospital, Borguna. The evidence of P.W. 1 as regards the injury caused by Abdul Jalil by remda blow is corroborated by P.Ws. 2, 3, 4, 6 and 7 and the medical certificate (exhibit-2) issued by P.W. 13. The evidence of P.W. 1 as regards causing injuries by ramda on his back of the head by accused Jashim is corroborated by P.Ws. 2 and 3. P.W. 6 is the wife of the elder brother of P.W. 1 and P.W. 7 Poly Akhter is the niece of P.W. 1. P.Ws. 6 and 7 did not corroborate the evidence of P.W. 1 as regards injury caused by accused Jashim although they accompanied P.W. 1 at the time of occurrence. The doctor who treated P.W.s. 6 and 7 was not examined by the prosecution. Except P.W.2, the prosecution witnesses did not say that the accused Idrish caused injury to P.W.1.

P.W.12 is the Chairman of the local Union Parishad. He stated that the informant P.W.1 Enamul Haque Meraj stated to him that accused Abdul Jalil and Khalil beaten him. The occurrence took place on 19.12.2000 and the FIR was lodged on 05.01.2001 about 16 days after the alleged occurrence. P.W. 1 did not disclose the name of the accused Jashim and Idrish to P.W. 12. Therefore, the false implication of accused Jashim and Idrish cannot be ruled out. Furthermore, P.Ws. 4, 6, 7, 9 and 12 did not corroborate the evidence of P.W. 1 as regards the alleged injury caused by Jashim and Idrish.

In view of the above evidence, facts and circumstances of the case, findings and proposition, I am of the view that the prosecution proved the charge against the accused Khalilur Rahman and Abdul Jalil beyond all reasonable doubt and the prosecution failed to prove the charge against the accused Jashim and Idrish beyond all reasonable doubt.

In the result, the Rule is made absolute in part.

The impugned judgment and order of conviction and sentence passed by the courts below so far relating to accused Jashim and Idrish Ali are hereby set aside.

The Rule so far relates to the accused Khalilur Rahman and Abdul Jalil is discharged.

The trial court is directed to do the needful.

Send down the lower Court's record at once.